

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 28, 2019

The Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Shanor, and pursuant to support received by Mr. Luna and Mr. Cook, Agenda Item #18(a) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 14, 2019. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Creating Chapter 12.28, Downtown Graffiti Abatement Pilot Program, of Title 12, Streets, Sidewalks and Public Places of the Municipal Code of the City of Cheyenne, Wyoming, and providing procedures for the operation thereof. Vicki Dugger, Executive Director, Cheyenne Downtown Development Authority, provided information on the current graffiti abatement program process which is an “opt-in” approach, advising letters and abatement forms were sent to property owners that were affected by graffiti with only 10.5% returned the forms. The DDA is establishing a pilot program in conjunction with the ordinance to take a more proactive approach and has approved a \$5,000 contribution until end of the current fiscal year and a \$15,000 commitment for next fiscal year. Ms. Dugger explained graffiti abatement work under the proposed program, noting it would be contracted out and spoke in favor of it being an “opt-out” program. She provided information on properties in the downtown district advising that many owners are not local. Chief Brian Kozak, Police Department, provided additional information on the current program, explaining volunteers paint over graffiti after a waiver is submitted by the property owner. Richard Johnson spoke about attendance at a public meeting regarding the program and spoke in support of an “opt-in” provision and asked for clarification on how possible citations would affect those who chose to “opt-in”. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Roybal. Dr. Rinne moved to amend by substitute dated January 24, 2019, which reflects an

amendment made at the January 23, 2019 Finance Committee meeting to Section 12.28.040 to reflect the program as “opt-in” instead of “opt-out”, seconded by Mr. Shanor. Discussion included: Support for an “opt-out” program, lack of success of the current process, spread of graffiti if untreated, unresponsive property owners, benefits of both an “opt-in” or “opt-out” program, concerns with altering property without the owner’s consent and the need for an accurate database of property owners in the downtown area. Upon inquiry related to charging individuals for graffiti, Chief Kozak explained there are few security cameras in the downtown alley areas with only two individuals being charged in the last several years, explaining those who do appear on camera are hard to identify. He stated convictions typically occur when the Police Department receives a tip and reported upon inquiry that currently white and grey paint is used due to cost. Motion to amend by substitute failed. Voting “yes” – Mr. Case, Mr. Cook, Mr. Laybourn, Mr. Luna and Mr. Shanor. Voting “no” – Mr. Esquibel, Mayor Orr, Dr. Rinne, Mr. Roybal and Mr. White. Main motion carried. Voting “yes” – Mr. Cook, Mr. Esquibel, Mayor Orr, Dr. Rinne, Mr. Roybal, and Mr. White. Voting “no” – Mr. Case, Mr. Laybourn, Mr. Luna, and Mr. Shanor.

ORDINANCE – 2nd READING – Delegating the review authority authorized by W.S. §34-12-103(b) to the Director of the City of Cheyenne Planning and Development Department. Dr. Rinne moved to approve on second reading, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.2 Planned Development Regulating Plan and Section 5.6.2 PUD – Planned Unit Development District, of the Cheyenne Unified Development Code (UDC) amending Ordinance Number 3741, which established The Village Planned Unit Development (PUD), by adding indoor entertainment as a land use category permitted by right for Lot 28 of Block 2 of The Village PUD, adding a new Section 5.11 to defer to the UDC standards where the PUD is silent on Development Standards, and, pursuant to Section 2.2.1 of the UDC, amending The Village PUD map to reflect Lot 28 instead of Lots 30 and 31 of The Village Subdivision for the subject parcel, Cheyenne, Wyoming, (located west of and adjacent to Powderhouse Road, south of Old Town Lane). Alessandra McCoy, Assistant City Attorney, explained a draft substitute has been circulated based on comments made during the Public Services Committee meeting designating the property as a conditional use instead of a use-by-right as originally proposed by added indoor entertainment. Based on concerns voiced regarding the existing Wyoming Downs location, the Police Department provided a memo outlining criteria for a safety/security plan for the proposed new site and current location. Ms. McCoy clarified three options for the property are use-by-right, voting the ordinance down or approving the amendment by substitute. Criteria as recommended by the Police Department can be added under a conditional use during the site plan process along with staff conditions. Charles Bloom, Director of Planning and Development, provided information relating to Wyoming Pari-Mutuel Commission involving citations issued to establishments. Frank Lamb, Wyoming Downs, explained hours of operation vary based on racing signals, confirmed proposed plan in conjunction with the Police Department to address security concerns, and provided information relating to security staff and training. Kelly Johnson spoke in opposition of the ordinance and location of the proposed establishment and provided statistics related to gambling and number of Police calls at the current Wyoming Downs location. For the record, Mr. Case expressed support of his neighborhood which is located in the vicinity of the existing business location and voiced concerns

relating to appropriate locations for this type of business. Upon inquiry, it was confirmed the proposed location for Wyoming Downs will be a secondary business location. Frank Cole provided information regarding a proposed development of a new school on land near the property (southeast corner of Carlson and Powderhouse) and voiced opposition relating to the proposed business location. Joe Svec, #1 Properties, explained it is anticipated the business will consist of a restaurant on the lower level and pari-mutuel machines in the upper level. Dr. Rinne moved to approve on second reading, seconded by Mr. White. Dr. Rinne moved to amend by substitute dated January 25, 2019, which includes an amendment made at the January 23, 2019 Public Services Committee, meeting making indoor entertainment land use permitted as a conditional use, seconded by Mr. Roybal. Comments were made on use-by-right vs. conditional use. Motion to amend failed. Voting “no” – all members of the governing body. Mr. Shanor moved to amend by adding a site plan condition that states at a minimum, staff will require the six safety precautions recommended in the January 14, 2019 Police Department memo, before approving a site plan, seconded by Mr. Roybal. Upon inquiry, Chief Kozak explained an officer has been assigned to the current location for about 4 months and has made safety improvement recommendations that have not yet been implemented by the establishment and confirmed if Wyoming Downs applies for a bar and grill liquor license, compliance checks would take place. Mr. Bloom stated zoning violations can be reported by citizens and any conditions placed on the site plan could be posted on the premise. Mr. Case requested maps of the current and proposed Wyoming Downs locations including proximity to nearby schools, licensed daycares and churches prior to the February 5, 2019 Public Services Committee. Motion to amend carried. Voting “yes” – all members of the governing body. Additional discussion included: Use-by-right vs. conditional use and law enforcement issues with current location, placing limitations on businesses if statutory requirements are met, site plan requirements, providing data and mitigating issues moving forward if ordinance is approved. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn, Mayor Orr and Dr. Rinne voting “no”.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Wiese Subdivision, 2nd Filing, a replat of Lot 3, Block 1, Wiese Subdivision, and a portion of Tract 79, Allison Tracts, 2nd Filing, Laramie County, Wyoming (located south of and adjacent to E. Prosser Road, east of S. Greeley Highway). Dr. Rinne moved to adopt with revised map, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#5972)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Destin Heights, a plat of the W 1/2 NE 1/4, and the N 1/2 SE 1/4 NE 1/4 of Section 24, Township 14N., Range 66 W. of the 6th P.M., Laramie County, Wyoming (located southwest of the intersection of Beckle and Christensen Roads). Seth Lloyd, Planning and Development Department, advised the intent was to include the revised map in the motion at the recent Public Services Committee meeting but it was inadvertently omitted, noting staff continues to recommend approval with the revised map and staff condition #1. Mr. Lloyd stated for the record staff condition #1 includes connection to the west subdivision, specifically Lupine Trail. Tom Mason, MPO, spoke in favor of condition staff condition #1 and reported a Planning Commission compromise was made for road dedication for the Lupine Rd. connection. Upon inquiry by Donn Edmunds, Mr. Lloyd explained the property is in the county (within one mile from City) and there is no anticipation of connection to city water or sewer services. Mr. Edmunds voiced concern

relating to potential depletion of the Ogallala Aquifer. Casey Palma, Steil Surveying Services, agent for the applicant, explained a geologist has been hired to conduct a water study due to the number of lots and results will be available to the public. Mr. Palma advised the property owner has reluctantly agreed to staff condition #1, as long as there isn't any construction considered at this time and confirmed a historic farmhouse is not located on this property but is instead located on a separate property east of the City. Mr. Palma confirmed the property consists of 19 five-acre lots which meets the county requirement for individual water wells and septic sewer systems. He stated the road will be an "s" curve ending in a cul-de-sac, and a reason to keep the road going may be for long range planning or if the land becomes part of the City. It was confirmed that prior to January 1, 2019, City approval was required for plats within a mile of the City limits. Dr. Rinne moved to adopt with revised map, seconded by Mr. Case. Dr. Rinne moved to amend by adding staff condition #1, seconded by Mr. Shanor. It was noted for the record the rationale for staff condition #1 is to convey the importance of connectivity. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Mr. Roybal voting "no". Main motion as amended carried. Voting "yes" – all members of the governing body. (#5973)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) grant agreements for three 2019 CLG grants (Saving Places Conference attendance, Historic Airport Fountain Phase 1 Construction Project, Cheyenne Façade Improvement Program Project). Motion (per Consent Agenda) carried. Voting "yes" – all members of the governing body. (#5974)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2019 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction Account Grant Application to the State Loan and Investment Board on behalf of the Governing Body for the City of Cheyenne for the purpose of funding the finish of the second floor of a new Municipal Courthouse – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Office on Violence Against Women OVW-2019-15743 Improving Criminal Justice responses to Domestic Violence, Sexual Assault, and Stalking Grant Program CFDA Number 16.590-Grants to Encourage Arrests Policies and Enforcement of Protection Orders Program – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Directing the delivery of a comprehensive report on the status of the completion of the 26th Street Storm Sewer Interceptor Project – referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] Lease Agreement between the City of Cheyenne, Community Recreation and Events Department, and Brian Chalstrom d/b/a Putt Hutt, for premises used as a miniature golf course in Lions Park. Motion (per Consent Agenda) carried. (#6937)

[CA] Agreement between the City of Cheyenne and HollyFrontier Cheyenne Refining LLC, to designate HollyFrontier as the presenting sponsor of Superday 2019, Superday Tour De Prairie, and Superday 5k/10k Run. Motion (per Consent Agenda) carried. (#6938)

[CA] Agreement to retain the OCHS Law Firm as outside legal counsel to represent the City of Cheyenne as a Plaintiff in litigation against manufacturers of opioid prescriptions drugs – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and High West Energy, Pine Bluffs, Wyoming, for services dealing with removal of a power line. (2015-2018 1% Sales Tax Funding) – referred to Finance Committee.

Professional Services Agreement between the City of Cheyenne and Vortex International Aquatic Play Solutions, Carrollton, Texas, for the design and construction of a splash pad at the Depot Plaza (General Fund and Visit Cheyenne fundraising donations) – referred to Finance Committee. Mr. White declared a conflict of interest and vacated council chambers. Reporting for Finance Committee, Mr. Case advised that due to timing, the item was reviewed under other items for the agenda at the January 22, 2019 Finance Committee meeting, therefore, provisions of Title 2 of City Code had been met. Mr. Case moved to approve, seconded by Mr. Roybal. Ben Hornok, Project Manager, TC Solutions, presented splash pad literature (on file with Clerk's office) and explained the main contract change is to extend the completion date to November, noting a targeted July 4th opening date. Upon inquiry, Teresa Moore, Director of Community Recreation and Events, explained construction could impact Fridays on the Plaza and other plaza events including the horse and carriage staging area during the summer, noting fencing and signage may be necessary. Michelle Vaughn, Vortex Aquatic Structures, explained the project completion date is dependent upon the planning and design process and construction start date, noting construction and completion of the project is anticipated to take approximately five to six months. Upon inquiry, Amy Allen, City Engineer, and Ms. Moore explained that due to unknown electrical power availability, it may not be possible to temporarily relocate some 2019 summer Depot Plaza events to the Civic Center Commons location, noting any proposed event use would need to be evaluated for power requirements. Additional comments included support of the proposed project. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Luna voting "no". Following announcement of the vote, Mr. White returned to council chambers. (#6933)

[CA] Agreement between the City of Cheyenne and Cheyenne Umpires Association for providing services for the 2019-2021 softball seasons – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Summit Engineering, LLC, for providing design services for five Greenway segments and 35% design services for segment No. 6. (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Cheyenne Laramie County GIS Cooperative and Aero-Graphics, Inc., Salt Lake City, Utah, for aerial photography and LiDAR services for the 2019 Aerial Imagery and LiDAR Project. (2015-2018 1% Sales Tax) – referred to Finance Committee.

Contract Modification #1 to Contract #6918 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, to add the Guaranteed Maximum Price for Phase I abatement and demolition of existing site for the Municipal Court Building Project. (1% Specific Purpose Sales Tax). Mr. White moved to approve, seconded Mr. Case. Upon inquiry, Ben Hornok, Project Manager, TC Solutions, explained the guaranteed maximum price for the project has not yet been established and noted the proposed contract modification amount is the amount for abatement and demolition for the project. Vicki Nemecek, Director of Public Works, confirmed the contract modification price adds the Phase I cost to the original contract price of \$21,485.00 with FCI Constructors of Wyoming, LLC, noting the Phase II guaranteed maximum price won't be determined until March 4, 2019, and explained the original contract amount was for pre-construction services. Mr. Hornak explained the pre-construction services. Upon inquiry, Sylvia Hackl, City Attorney, explained the original contract has been approved by the governing body in which phases of the project will be presented for approval. Motion carried. Voting "yes" – all members of the governing body. (#6918)

[CA] Contract Modification #2 to Contract #6892 between the City of Cheyenne and Noel Griffith Jr. & Associates Architects for Architectural and Engineering Services for finish of the second floor of the Cheyenne Municipal Court Project (1% Specific Purpose Sales Tax and General Fund reserves) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6839 between the City of Cheyenne and Reiman Corporation for partial release of retainage for the Civic Center Commons Park Project (1% Specific Purpose Sales Tax, SLIB, FEMA and Parks funds) -- referred to Finance Committee.

[CA] Consideration of Bid #E-11-19 for furnishing one new 2018-2019 cab & chassis with 45-foot aerial device body for the Forestry Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried.

Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the February 21, 2019 Wyoming Association of Municipalities Winter Conference Business Meeting to be held in Cheyenne, Wyoming. Mr. White moved to delegate Dr. Rinne as Official Voting Delegate, and Mr. Shanor as Alternate Delegate, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Esquibel voting "no".

Appointment of Allan Cunningham to the Board of Public Utilities. Mr. Roybal moved to approve, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Announcement was made of a Public Hearing to be held February 11, 2019 at 6:00 p.m. in the City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for Lot 4, Block 2, Swan Ranch Rail Park Third Filing, and a Portion of adjacent Tundra Drive right-of-way, Laramie County, Wyoming (located at the southwest corner of Tundra Drive and Clear Creek Parkway).

Announcement was made of a Public Hearing to be held February 11, 2019 at 6:00 p.m. in the City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for Lots 6 and 7, Block 1, and all that 16' alley located in Block 1, except east 8' adjacent to Lots 3 and 4, Block 1 Countryside Addition, Laramie County, Wyoming (located at the southwest intersection of Countryside Avenue and Whitney Road).

Following a brief recess, Mayor Orr reconvened the meeting at 8:04 p.m.

Under other business:

Donn Edmunds inquired about possible traffic resolutions at US 30 and Whitney Road and voiced concerns relating to construction of the intersections involving the Christensen Road project. Amy Allen, City Engineer, advised WYDOT and MPO are working together on a masterplan to improve that intersection and reported the City is moving forward with relocating the sidewalk for pedestrian use. Mr. Case encouraged attendance at the public meetings for the masterplan and advised discussions regarding project funding options are on-going.

Richard Johnson spoke in support of the "opt-in" amendment that failed for the ordinance related to the Downtown Graffiti Abatement Pilot Program, spoke about electrical conduit locations at the Depot Plaza, provided information on the school zone at Taft and 13th St., and voiced concerns regarding pedestrian walk-ways covered in ice near the Depot Plaza.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:13. p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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